

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/21/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0001387

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: PEDRO MIGUEL
FERREIRA AGAPITO

vs.

DEFENDANTS: CALIFORNIA
DEPARTMENT OF TRANSPORTATION, ET
AL.

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Appearances required.

Plaintiff failed to comply with the Court’s order of June 16, 2026 which was “to file his opposition papers and proof of service forthwith, and in any event **no later than June 24, 2026.** (Emphasis in original.)” To date, Plaintiff still has not filed the papers. The Court cannot review an opposition that has not been filed.

The Court understands that Plaintiff is now acting as his own attorney. However, self-represented litigants are required to follow the same procedural rules as represented parties. (See *Rappleyea v. Campbell* (1994) 8 Cal. 4th 975, 984-985.) The Court hereby issues an **Order to Show Cause** to Plaintiff as to why sanctions should not be imposed on him for failing to comply with the Court’s order. Plaintiff is to appear at the hearing to respond to this order.

All parties must appear at the hearing to address how to proceed on the pending motion for summary judgment.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for June 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/21/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0001539

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PETITIONER: LUCKY NELLEN, LLC vs. DEFENDANT: BKF ENGINEERS, A CALIFORNIA CORPORATION	
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NATURE OF PROCEEDINGS: MOTION – CONTESTING GOOD FAITH SETTLEMENT

RULING

The motion of Defendant BKF Engineers (“BKF”) to contest the application of Plaintiff Lucky Nellen, LLC (“Plaintiff”) for determination of good faith settlement is **DENIED**. The Court finds the settlement was made in good faith settlement. (Code Civ. Proc., § 877.6.)

Background

Plaintiff is the owner of the commercial building at issue in this litigation. Plaintiff hired Cross-Defendant and Cross-Complainant McDevitt Construction Partners, Inc. (“McDevitt”) as the general contractor for the construction of the building. McDevitt thereafter hired Defendant BKF to provide land survey services for the construction. There is currently litigation between the parties over alleged defects in the construction. Plaintiff claims that the building was not constructed in accordance with required elevation regulations.

After a full-day mediation, Plaintiff and McDevitt entered into a settlement in this matter. The settlement provides that McDevitt will do the following: (1) pay Plaintiff \$60,000; (2) release any claim to \$373,874 in retained funds and interest held by Plaintiff; and (3) assign any claims it has against BKF to Plaintiff. The settlement is conditioned on approval by the Court of the good faith of the settlement.

Plaintiff applied to the Court for a determination of good faith. BKF has filed a motion contesting the good faith of the settlement.